

25NNCV02823 25NNCV02823

County: los-angeles

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Case Number: 25NNCV02823 Hearing Date: September 18, 2026 Dept: D

TENTATIVE RULING

Calendar: 9

Date: September 18, 2026

Case No: 25NNCV02823 Trial Date: January 24, 2028

Case Name: Schlenz v. Santo Tomas Dental Group, Inc, et al.

MOTION TO QUASH DEPOSITION SUBPOENA

[CCP §]

Moving Party: Plaintiff, Edith Felicitas Schlenz

Responding Party: Defendant, Victor Israel, DMD, DDS [Unopposed]

RELIEF REQUESTED:

Quash deposition subpoena for production of Medicare records.

CAUSES OF ACTION: from First Amended Complaint

1) Dental Malpractice

2) Lack of Informed Consent

3) Financial Elder Abuse [Welfare & Institutions Code § 15610.30]

4) Unfair Business Practices [Business & Professions Code § 17200]

5) Fraud

6) Medical Battery

7) Intentional Infliction of Emotional Distress

SUMMARY OF FACTS:

Edith Felicitas Schlenz ("Plaintiff") alleges that on April 25, 2025, Plaintiff, a 75-year-old senior citizen, visited defendants Santo Tomas Dental Group, Inc. and Evan Farr DDS, Inc. dba Santo Tomas Dental Group's office for a dental consultation for an estimate to replace her partial upper dentures. Plaintiff alleges that despite her request for a quote to replace her partial upper dentures only, Defendants prepared an estimate for a treatment plan that included full upper dentures with two dental implants, and full lower dentures with six dental implants costing approximately \$35,000.00. Plaintiff alleges that without her consent, defendant Victor Israel, DMD, DDS ("Israel") extracted two of Plaintiff's healthy, natural teeth, and placed two dental implants.

The Complaint further alleges that, without Plaintiff's knowledge or consent, Defendants secured a loan in Plaintiff's name in the amount of \$30,000.00 with an APR of 20.49% and monthly payments of \$675.07, totaling \$56,705.88 in payments over the life of the loan. The Complaint alleges that Defendants also secured an additional line of credit in the amount of \$3,000.00 to be repaid over 60 months at an APR of 17.99%, without Plaintiff's consent. Plaintiff alleges that she did not agree to finance any dental work, did not authorize the creation of a credit account, and was not informed about the nature of these financial agreements. Plaintiff alleges that she is on a fixed income from Social Security and should never have qualified for these loans. She alleges that Defendants fraudulently obtained and misused her financial information to secure these credit lines for services to which she did not knowingly agree. Plaintiff alleges that the debts have caused her severe emotional distress, physical pain and financial hardship.

ANALYSIS:

"When a subpoena requires the attendance of a witness or the production of books, documents or other things before a court, or at the trial of an issue therein, ..., upon motion reasonably made by the party, the witness, or any consumer described in Section 1985.3, or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon such terms or conditions as the court shall declare, including protective orders." (CCP § 1987.1) There is no requirement that the motion contain a meet-and-confer declaration demonstrating a good-faith attempt at informal resolution. (CCP § 1987.1) A motion to quash requires a separate statement, unless the party being subpoenaed did not provide any response to the subpoena. (Rules of Court, rule 3.1345(a)(5), (b)(6).)

"Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action. Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter, as well as of the existence, description, nature, custody, condition, and location of any document, electronically stored information, tangible thing, or land or other property." (CCP § 2017.010.)

Plaintiff moves to quash the deposition subpoena for production of Medicare records issued and served by defendant Israel on the Centers for Medicare & Medicaid Services, San Francisco Regional Office. Plaintiff argues that subpoena violates Plaintiff's right to privacy, seeks documents not reasonably calculated to lead to the discovery of admissible evidence, and is overbroad and burdensome.

The subpoena seeks "Any and all documents pertaining to the subject. This request includes, but is not limited to the entire official and unofficial file, reports, forms, memoranda, claims, handwritten memoranda, written records of any kind, telephone memoranda, statements, tapes, photographs, videotapes, and any other information, media or data stored or transmitted electronically pertaining to this insurance file. Please include copies of any medical records that may be contained in the file. Please provide copies of any photographs in digital format such as JPG or JPEG on cd, flash drive or via email. MEDICARE SUBSCRIBER # 3QR3-YK6-CP92" (Marjiya Decl., Ex. A.)

Plaintiff first argues that the subpoena violates her right to privacy. A plaintiff has a reasonable expectation of privacy in their medical information. (See *John B. v. Superior Court* (2006) 38 Cal.4th 1177, 1198 [finding medical records are protected by the California right to privacy].) Medical history is protected by the California constitutional right to privacy. (See *John B.*, supra 38 Cal.4th at p. 1198.) Yet the privacy protection is not absolute; medical histories are discoverable to the extent the need for discovery outweighs the patient's privacy concerns. (Id. at p. 1199.) All medical histories relating to a plaintiff's claimed injuries in a personal injury action are discoverable. (See Evid. Code, §§ 996, 1016; *Britt v. Sup.Ct. (San Diego Unified Port Dist.)* (1978) 20 Cal.App.3d 844, 864.) However, medical records pertaining to an unrelated condition are discoverable on a showing of "good cause" if the condition is relevant to the issue of proximate causation. (See Evid. Code, § 999; *Slagle v. Superior Court* (1989) 211 Cal.App.3d 1309, 1313.) Accordingly, Defendants may only discover injuries or conditions not directly caused by the incident if they provide good cause for doing so (i.e. by demonstrating the injury is relevant to proximate causation).

Here, Plaintiff's claimed injuries concern dental treatment. However, the subpoena seeks all Plaintiff's Medicare records, not limited or tailored to dental work. Defendants have not filed any opposition to this motion or otherwise explained their request for Plaintiff's entire Medicare records unrelated to the claimed injuries. Accordingly, the Court finds that Plaintiff's medical records are protected by the California constitutional right to privacy, and Defendants have not met their burden to show good cause for the medical records sought.

Thus, the motion is GRANTED.

RULING:

Plaintiff Edith Felicitas Schlenz's Motion to Quash is GRANTED.

The subpoena issued to the Centers for Medicare & Medicaid Services, San Francisco Regional Office is hereby QUASHED.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.